



**DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND SOUTHEAST
JACKSONVILLE, FL 32212-0030**

J&A # N69450-25-0478

**JUSTIFICATION AND APPROVAL FOR
OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

The agency is the Department of the Navy. The contracting activity is Naval Facilities Engineering Systems Command Southeast (NAVFAC SE) Jacksonville, Florida.

2. Description of the Action Being Approved.

Approval is sought to increase the contract maximum Not-To-Exceed (NTE) capacity for the 2021 NAVFAC SE Area of Operation (AO) Multiple Award Construction Contract (MACC), Master MACC N6945021D0055, by \$95M, thereby increasing the total NTE from \$1.01B to \$1.105B. This action will not extend the period of performance of 27 September 2026.

3. Description of Supplies/Services.

NAVFAC SE procured a Design-Build and Design-Bid-Build Indefinite Delivery/Indefinite Quantity (IDIQ) Firm-Fixed-Price (FFP) MACC for the NAVFAC SE AOR which includes (but is not limited to) the states of Florida, Georgia, Louisiana, Mississippi, South Carolina, Tennessee, and Texas. Projects to be performed may include Design-Build construction or 100% plans and specifications construction contracts for general construction. Construction will primarily consist of general building type projects (new construction or renovation and any necessary design) including: Administrative Facilities, Training Facilities, Hangars, BEQs, Dormitories, Maintenance Facilities, Commissaries/Retail, and other similar types of facilities for the areas managed by NAVFAC SE.

Seven MACCs were awarded 28 September 2021 and an additional three MACCs awarded 29 November 2021. The current AO MACC is comprised of the following ten IDIQ contracts:

N69450-21-D-0056 Gilbane Federal
N69450-21-D-0057 Hensel Phelps Construction Co.
N69450-21-D-0058 The Korte Construction Company
N69450-21-D-0059 M.A. Mortenson Company N69450-
N69450-21-D-0060 RQ Construction, LLC.
N69450-21-D-0061 Sauer Construction, LLC.
N69450-21-D-0062 Walsh Federal, LLC.
N69450-22-D-0011 B.L. Harbert International, LLC.
N69450-22-D-0012 Balfour Beatty Construction, LLC.
N69450-22-D-0013 The Whiting-Turner Construction Company

Each contract has a minimum guarantee of \$1,000 with a five-year period of performance. The task order range is \$20M - \$100M; subject to an aggregate MACC maximum contract value or the current NTE capacity of \$1.01B. All contracts expire 27 September 2026.

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(2) as implemented by FAR 6.302-2 – Unusual and compelling urgency.

5. Rationale Justifying Use of Cited Authority.

The 2021 NAVFAC SE AO MACC, henceforth referred to as the 2021 AO MACC, was awarded with the assumption that the estimated aggregate NTE capacity would be sufficient based upon the workload projections and historical data at the time of contract award. However, due to unforeseen critical work associated with FY25 Hurricane Supplemental Package authorized by Congress in Quarter Two (Q2) FY25. The FY25 Supplemental Packages includes the following projects that were not planned to be awarded in FY25 and therefore were not known execution requirements until now: Hangar 1000 Roof and Building Envelope Repairs at Naval Air Station (NAS) Jacksonville (JAX), FL; Patrol and Reconnaissance Squadron (VP) 30 Roof Repairs at Naval Air Station Jacksonville (NAS JAX), FL; and Repair Electrical Systems Resiliency Feeder 1 and 2 at NAS Key West, FL. An increase in capacity is required for the immediate repair/restoration/renovation of facilities and infrastructure at these locations. These mission critical projects must be awarded in FY25. There is currently \$858M obligated under the 2021 AO MACC, with \$148M in planned awards for FY25, leaving only \$4M in remaining capacity. The remaining capacity is insufficient to support emerging NAVFAC SE requirements, estimated at \$█M.

If the additional capacity is not granted, then the remaining awards will have to be procured on a standalone basis. Competing these awards on such a basis was contemplated; however, it would not be in the best interest of the Government in accordance with FAR 6.302-2(b)(2), where delay in award would result in serious injury, financial or other, to the Government. The projects identified within this J&A are all Design-Build (DB) construction. A DB project procured as a MACC Task Order will take approximately 60% less time than a two-phase standalone contract. Therefore, the administrative effort required to award multiple stand-alone construction contracts is not cost effective and cannot be completed timely, which impacts the Government's ability to meet mission essential requirements.

Projects procured under the 2021 AO MACC are competed amongst the ten MACC holders, opening the requirements up to full and open competition as standalone procurements is not likely to garner any significant savings beyond MACC competition. A substantial duplication of costs to the Government would be incurred if required to find a new pool of contractors to perform the work. The MACC contractors have been determined to be capable of performing this work, and are familiar with the type and location of work to be performed thereby allowing for great efficiencies in pricing and work performance. There are no other contracting vehicles to complete this increased work, as all other NAVFAC SE MACCs that cover the geographic area for the three (3) mission critical projects are approaching exhaustion of sufficient remaining capacity. Furthermore, the estimated dollar value for these projects exceeds the task order limitations of the other MACCs currently in place; thus, the capability of those MACC holders, with regard to project performance is unknown, and therefore considered high risk. Additionally, these requirements were not identified until Q2FY25 when the FY25 Hurricane Supplemental Package was approved. The Supplemental Package authorized FY25 Operation and Maintenance, Navy (O&M,N) funds for numerous projects across multiple installations that were damaged by natural disasters. As the funding appropriated for these projects is FY25 O&M,N, all three (3) projects must be awarded no later than September 30, 2025; therefore, sufficient acquisition time to

procure these projects on a stand-alone basis does not exist. If the projects are not procured under the Large AO MACC, the Navy will lose funding for mission critical projects for which the FY25 Hurricane Supplemental Package provides appropriated funds. Each of the three (3) projects, further detailed below, provides critical renovations required by the Navy to ensure minimal mission impacts.

The following list of projects is identified for award on the 2021 AO MACC, for which additional capacity is required. Increasing the capacity on the MACC will provide sufficient capacity for any future unknown modifications to existing task orders.

<u>Project Title</u>	<u>Installation</u>	<u>Estimated Cost</u>
H1000 Roof and Building Envelope Repairs	NAS Jacksonville, FL	\$ [REDACTED]
VP-30 Roof Repairs	NAS Jacksonville, FL	\$ [REDACTED]
Repair Electrical Systems Resiliency Feeder 1 and 2	NAS Key West, FL	\$ [REDACTED]
TOTAL ESTIMATE FOR ADDITIONAL PROJECTS		\$ [REDACTED]

Below is additional information for each of the projects in the table above.

H1000 Roof Repairs at NAS Jacksonville, FL

This project will address life, health and safety hazards created by the failure of the existing roof system on H1000 located at Naval Air Station Jacksonville (NASJAX). Scope of work includes replacing the roof, roof drains, gutters, downspouts and roof-top mounted mechanical equipment. A watertight roof is required to ensure the adequacy of H1000 which supports eleven tenants and is primarily used by NAVAIR as an Aircraft Rework Shop. The project is Design Build (DB) and is part of the FY25 Disaster Supplemental program. The draft DB RFP package is currently complete with the final anticipated in MAY2025. Award is currently planned for quarter four (Q4) FY25 to meet critical mission requirements. The procurement has an estimated cost of \$ [REDACTED] M and will be procured utilizing [REDACTED]. Authority to Advertise (ATA) from Commander Navy Installation Command (CNIC) is currently pending for this project, which will be provided through the DASN approval process, utilizing FY25 Operation and Maintenance, Navy (O&M, N). As the project must be awarded no later than September 30, 2025, to avoid serious injury to the Government resulting from failure to meet critical mission requirements, there is no other contract vehicle that can meet the procurement timeline other than the 2021 AO MACC.

VP-30 Roof Repairs at NAS Jacksonville, FL

This project will address life, health and safety hazards created by the failure of the existing roof system on building 30 located at Naval Air Station Jacksonville (NASJAX). The scope of work includes replacing the roof and associated components. A watertight roof is required to ensure the adequacy of building 30 which supports Fleet Replacement Squadron (FRS) Patrol Squadron VP30 which is the largest aviation squadron in the fleet with their mission encompassing the employment of over 1,200 sailors representing the largest throughput of Navy aircrew. Their primary role is to produce highly trained Maritime Patrol and Reconnaissance MPRA fleet squadrons with Naval Air Training and Operating Procedures Standardization (NATOPS) qualified Pilots, Naval Flight Officers, and Enlisted Aircrew for the P-3C, P-8A, and MQ-4C platforms. Their hangars service approximately 12-15 aircraft at a time, the majority of which are P-8As. Due to the significance of VP-30s training mission and magnitude of their throughput their requirement to have uninterrupted operations is critical to maintaining reliable manning for fleet squadron readiness. As such, failing facility conditions need to be addressed to remove barriers to meeting their mission. The project is Design Build (DB) and is part of the FY25 Disaster Supplemental program. The draft DB RFP

package is currently complete with the final anticipated in May 2025. Award is currently planned for quarter four (Q4) FY25 to meet critical mission requirements. Authority to Advertise (ATA) from Commander Navy Installation Command (CNIC) is currently pending for this project, which will be provided through the DASN approval process, utilizing FY25 Operation and Maintenance, Navy (O&M, N). As the project must be awarded no later than September 30, 2025, to avoid serious injury to the Government resulting from failure to meet critical mission requirements, there is no other contract vehicle that can meet the procurement timeline other than the 2021 AO MACC.

Repair Electrical System – Resiliency Feeder 1 and 2 at NAS Key West, FL

This project will restore resiliency of the aging 13.8 kV electrical distribution system on the Main Base (including the airfield) of Naval Air Station Key West (NASKW) by removing risk of prolonged and frequent electrical outages to critical facilities and preventing harm to personnel and equipment. Scope of work includes removing and replacing failing overhead lines; replacing spliced and deteriorated underground cabling; and replacing/elevating aging/unsafe equipment and instrumentation. Adequate and safe utilities are required to ensure NASKW fulfills its national security mission to support operational and readiness requirements for Department of Defense, Department of Homeland Security, National Guard units, federal agencies, and allied forces. The project is Design Build (DB) and is part of the FY25 Disaster Supplemental program. The DB RFP package is currently complete. Award is currently planned for quarter four (Q4) FY25 to meet critical mission requirements. Authority to Advertise (ATA) from Commander Navy Installation Command (CNIC) is currently pending for this project, which will be provided through the DASN approval process, utilizing FY25 Operation and Maintenance, Navy (O&M, N). As the project must be awarded no later than September 30, 2025, to avoid serious injury to the Government resulting from failure to meet critical mission requirements, there is no other contract vehicle that can meet the procurement timeline other than the 2021 AO MACC.

The procurement for a new competitive contract vehicle that covers the NAVFAC SE AO is already in the acquisition planning phase. A new \$2B AO MACC is anticipated to be awarded in [REDACTED] 2025. The projects identified above are candidates for 2021 AO MACC procurement based upon project requirements, location, and estimated dollar value. The funding source and execution schedules require them to be solicited and awarded by September 2025. The new AO MACC will not be awarded in time to accommodate this requirement.

6. Description of Effort Made to Solicit Offers from as Many Offerors as Practicable

The 2021 AO MACC was procured on an unrestricted basis inviting full and open competition. In accordance with FAR 6.305, the approved J&A will be posted on sam.gov within 30 days after award of the contract modification in accordance with FAR 6.305(b).

7. Determination of Fair and Reasonable Cost

The Contracting Officer has determined that the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable based on the competitive nature of the MACC.

8. Actions to Remove Barriers to Future Competition.

A new \$2B AO MACC is being procured by NAVFAC SE and award is anticipated in [REDACTED] 2025. New projects not discussed in this document that meet requirements based on scope, location, and dollar value will be competed on a standalone basis until the new MACC has been awarded.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance, which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

 

Michael Davis Phone No. Date
Supervisory Project Manager
NAVFAC SE

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

 

Javier Gonzalez Phone No. Date
Office of Counsel
NAVFAC SE

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

 

Lindsay Betteridge Phone No. Date
Construction Contracting Division Director
NAVFAC SE

ASSISTANT COMMANDER FOR CONTRACTING APPROVAL

Upon the basis of the above justification, I hereby approve, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(2), Unusual and Compelling Urgency.

[Redacted Signature]

Cindy S. Readal
Assistant Commander for Contracting
Naval Facilities Engineering Command

Phone No. Date